

		Indeed, Defendants have not provided the court with sufficient information to even determine the extent to which the claims in the prior federal court case overlap with the claims presented herein. Further, to the extent the claims in both actions are the same, this later action was presumably filed simply because the claims could not be heard in federal court. Defendants to give notice.
6	San Bernardino County vs. Marina Point Development Associates 2022-01294089	Motion for Summary Judgment and/or Adjudication filed by San Bernardino County on 4/18/23 Plaintiff San Bernardino County's (the "County") Motion for Summary Judgment or, in the Alternative, Summary Adjudication is DENIED. The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. <i>Aguilar v. Atlantic Richfield Co.</i>, 25 Cal. 4th 826, 849-850 (2001). A Plaintiff has met his or her burden of showing there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on that cause of action. Cal. Code Civ. Proc. § 437c(p)(1). Once the Plaintiff has met that burden, the burden shifts to the Defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. <i>Id.</i>

Here, the County seeks summary judgment on its first amended complaint against defendants Marina Point Development Associates and Irving Okovita (together, “Defendants”) for two counts of indemnification.

The County contends that the parties entered into written agreements that require Defendants to indemnify the County from any claim attacking the County’s approval of revisions to a previously approved plan for Defendants’ development of a resort at Big Bear Lake (the “Minor Revision”).

On 10/14/20, the County and Defendants were ordered jointly and severally to pay \$139,920.18 in attorneys’ fees and costs to two environmental interest groups who successfully challenged the County’s approval of the Minor Revision in San Bernardino County Case No. CIVDS1512175. *See* UF 12-15. The County paid the full amount on 2/24/21. *See* UF 15. The County then tendered a demand to Defendants for reimbursement, but Defendants refused. *See* UF 16.

Defendants do not dispute the existence of the indemnity agreements, but instead assert that the agreements cannot be enforced due to the County’s unclean hands, active negligence, and failure to cooperate fully in the defense of the underlying action. More specifically, Defendants contend that they made it clear to the County that they would not pursue the Minor Revision application if the County required public notice or a discretionary approval rather than an administrative or ministerial approval. *See* AUF 2. Defendants

were informed by the County that the proposed change would be subject to administrative approval rather than discretionary approval. *See* AUF 4. In reliance on these representations, Defendants pursued the application. Had Defendants known that the representations were false, they would not have pursued the approval. *See* AUF 8.

Indemnification agreements such as those at issue here are authorized by Government Code § 66474.9. The County argues that defenses such as unclean hands do not apply to indemnification agreements in this context. In support of this proposition, the County cites three cases: *Topanga Association for a Scenic Community v. County of Los Angeles*, 214 Cal. App. 3d 1348, 1364-65 (1989); *San Bernardino Valley Audubon Society, Inc. v. County of San Bernardino*, 155 Cal. App. 3d 738, 755-757 (1984); and *Mejia v. City of Los Angeles*, 156 Cal. App. 4th 151, 162 (2007).

None of the cited cases, however, involve allegations that the public agency made affirmative misrepresentations as Defendants assert here. Rather, each of the cited cases involved presumably unintentional mistakes. For example, the court in *Topanga Association* found that the cost of “misfeasance” such as “administrative lapses, failure and omissions” could be transferred to the developer. However, there were no allegations of affirmative misrepresentations before it.

In addition, *San Bernardino Valley* and *Mejia* do not involve Government Code § 66474.9 at all. They instead interpret Code of Civil Procedure section 1021.5, which codifies the

“Private Attorney General Doctrine.” In both of those cases, the courts allowed a fee award against the developer as the “real party in interest.” However, as stated above, there were no allegations that the public agencies in those cases had engaged in the sort of conduct alleged here.

While this Court has been unable to locate any published decisions other than *Topanga Association* that provide any interpretation of Government Code section 66474.9, the Court is not persuaded by any of the authorities presented herein that Defendants’ defenses are inapplicable in the context of an indemnity agreement authorized by the aforementioned section.

The County further contends that Defendants have not raised a triable issue of fact as to their unclean hands and other defenses.

Whether the doctrine of unclean hands applies is a question of fact. *CrossTalk Productions, Inc. v. Jacobson*, 65 Cal. App. 4th 631, 639 (1998). A determination as to whether the particular misconduct is a bar to the alleged claim for relief depends on: (1) analogous case law; (2) the nature of the misconduct; and (3) the relationship of the misconduct to the claimed injuries. *Kendall-Jackson Winery, Ltd. v. Superior Court*, 76 Cal. App. 4th 970, 978–79 (1999) (citing *Blain v. Doctor’s Co.*, 222 Cal. App. 3d 1048, 1060 (1990)).

Here, Defendants have raised triable issues of fact, *see supra*, as to whether the County’s

		conduct during the Minor Revision approval process supports a defense of unclean hands. As the finding of a single issue of triable fact is dispositive, the Court does not consider whether Defendants have raised triable issues of fact as to their other defenses. The County's objections to ¶¶ 2, 4, and 8 of the Okovita declaration are OVERRULED. The proffered statements are relevant and Undisputed Fact No. 4 additionally falls within the hearsay exception for admission of a party. <i>See</i> Cal. Evid. Code § 1220. Moving Party to give notice.
7	Skendzic vs. S-H MRE/HCP OPCO Ventures, LLC 2023-01320924	1. Motion for Protective Order 2. Motion for Protetive Order filed by MBK Senior Living, LLC, MSL Community Management, LLC, S-H MRE/HCP Opco Ventures, LLC, S-H Huntington Terrace Opco LLC on 8/3/23 Off Calendar
8	Verkuyl vs. FCA US, LLC 2022-01297073	Motion to Compel Production filed by Gerald Verkuyl on 5/24/23 Withdrawn
9	Mikaele vs. Sundance Fire Protection California Inc 2023-01334461	Demurrer to Answer filed by Lelandra Mikaele on 8/22/23 The Demurrer to Answer filed by Plaintiff, Lelandra Mikaele, is DENIED AS MOOT. The demurrer is directed towards the Answer filed by Defendants, Sundance Fire Protection California, Inc. and Don Blunt. On September